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Board of Education Report

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File #: Rep-084-23/24, **Version:** 1

Authorization to Enter into an Agreement with the Los Angeles Department of Water and Power to Establish Funding for Transportation Electrification Projects

October 17, 2023

Facilities Services Division

Action Proposed:

Approve an Agreement between the Los Angeles Unified School District (Los Angeles Unified or District) and the Los Angeles Department of Water and Power (LADWP) to establish program funding of up to \$4,845,000 to support Los Angeles Unified transportation electrification projects, and further authorize the Chief Facilities Executive and/or the Chief Procurement Officer and/or their designee(s) to execute all instruments reasonably related to this Agreement.

Background:

Consistent with Los Angeles Unified's 2022-2026 Strategic Plan and the Board of Education's (Board) *Transitioning Los Angeles Unified School District to 100% Clean, Renewable Energy Resulting in Healthier Students and More Sustainable, Equitable Communities* Resolution, Los Angeles Unified is committed to achieving 100% clean, renewable energy in its electricity sector by 2030, and in all energy sectors, including heating, ventilation, air conditioning, cooking and transportation by 2040. These efforts include replacing the District's fossil fuel-powered vehicles with electric vehicles that reduce carbon emissions and promote sustainable transportation for students.

The Agreement establishes LADWP's commitment and requirements for the District to obtain funding subject to the annual LADWP budgeting process using proceeds from the sale of emission credits in accordance with the California Air Resource Board's (CARB) Low Carbon Fuel Standard (LCFS) regulation - for the purchase and installation of charging infrastructure to support electric vehicles (EV) at various District sites with transportation electrification plans (e.g., bus garage electrification projects, major modernization projects) as agreed upon by Los Angeles Unified and LADWP. Under the proposed Agreement, LADWP will provide transportation electrification program funding to the District in an amount not to exceed \$4,845,000 over a three-year term.

Expected Outcomes:

Staff anticipates the Board will approve this Agreement to permit the District and LADWP to perform all related necessary functions for its implementation in support of transportation electrification projects that will be delivered with methods that create documentable reductions in Green House Gas emissions.

Board Options and Consequences:

Approval of this action will enable staff to proceed with the necessary administrative and project activities related to the Agreement. If the proposed action is not approved, Los Angeles Unified will forfeit up to \$4,845,000 in LADWP rebates that will support transportation electrification projects at District sites.

Policy Implications:

The requested action does not change current District policies. The proposal is consistent with Los Angeles Unified's clean energy goals and advances 2022-2026 Strategic Plan Pillar 4 Operational Effectiveness Modernizing Infrastructure by helping our ongoing implementation of clean transportation standards.

Budget Impact:

The proposed action does not require additional District funding. Per the terms of the Agreement, LADWP agrees to provide up to \$4,845,000 in transportation electrification program funding to LAUSD. The activities associated with administering the Agreement, and operating and maintaining EV charging stations on LAUSD sites will be funded by existing District resources. The District will also be responsible for the associated electricity costs and software service fees from the use of the charging stations.

Student Impact:

Replacing the District's fossil fuel-powered vehicles with electric vehicles reduce carbon emissions and promote sustainable transportation for students and staff, resulting in improved air quality, and reduced risk to the health of residents living in the Los Angeles area. Further, the use of EV charging stations provides opportunities to raise sustainability awareness with students, as they are our future eco-responsible drivers.

Equity Impact:

Not Applicable.

Issues and Analysis:

Under the terms of the Agreement:

- LADWP will invest a maximum of \$4,845,000. The apportionment of funding is as follows:
 - EV Charging Stations - up to \$4,500,000;
 - LADWP will provide \$4,000 to \$30,000 per EV charging station depending on the type (AC Level 2 or DC fast charger) and output capacity (kW) of each charging station.
 - Project Planning and Development Team - up to \$300,000; and
 - Feasibility Studies - up to 30 feasibility studies at \$1,500 each for a total of \$45,000 to assess LAUSD's facility adequacy for electrification projects.
- The term of the Agreement commences upon full execution by both parties (Effective Date) and ends three years after the Effective Date.
- Eligible costs include the purchase and installation of charging infrastructure and associated communication hardware to support electric vehicles and utility-side infrastructure costs required to provide electric service.
- The charging stations installed at each District facility supported by this Agreement are the sole property and responsibility of LAUSD to operate and maintain. (Depending upon the type of charger and with proper maintenance, fast chargers can last approximately 8 to 10 years.)

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- LADWP retains the right to generate and own LCFS credits for electricity provided to each charging station installed under this Agreement for five years following the date such charging station is placed in service. LAUSD agrees to maintain and keep operational all EV charging stations for the five-year period in which LADWP retains ownership of LCFS credits.
- LAUSD will be responsible for the associated electricity costs and software service fees.

Attachments:

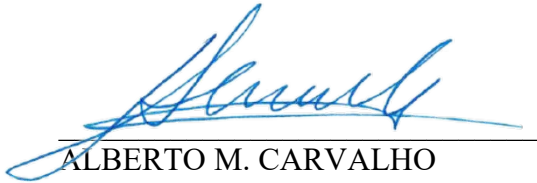
None.

Informatives:

None.

Submitted:

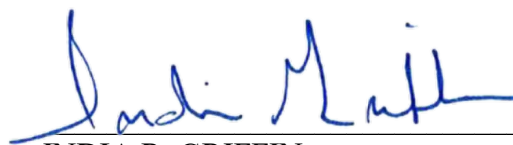
09/19/23

RESPECTFULLY SUBMITTED,
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Superintendent**APPROVED BY:**
PEDRO SALCIDO
Deputy Superintendent,
Business Services and Operations**REVIEWED BY:**
DEVORA NAVERA REED
General Counsel

☒ Approved as to form.

APPROVED BY:
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Chief Facilities Executive
Facilities Services Division**REVIEWED BY:**
NOLBERTO DELGADILLO
Deputy Chief Business Officer, Finance

☒ Approved as to budget impact statement.

PRESENTED BY:
INDIA R. GRIFFIN
Director of Facilities Maintenance and Operations